

2. The following principles shall as far as possible be taken into account in dividing any unit of review into constituencies pursuant to the provisions of Articles 116 and 117—

- (a) while having regard to the desirability of giving all electors reasonably convenient opportunities of going to the polls, constituencies ought to be delimited so that they do not cross State boundaries and regard ought to be had to the inconveniences of State constituencies crossing the boundaries of federal constituencies;
- (b) regard ought to be had to the administrative facilities available within the constituencies for the establishment of the necessary registration and polling machines;
- (c) the number of electors within each constituency in a State ought to be approximately equal except that, having regard to the greater difficulty of reaching electors in the country districts and the other disadvantages facing rural constituencies, a measure of weightage for area ought to be given to such constituencies;
- (d) regard ought to be had to the inconveniences attendant on alterations of constituencies, and to the maintenance of local ties.

3. For the purposes of this Part, the number of electors shall be taken to be as shown on the current electoral rolls.

3A. For the purposes of this Part, in any review of constituencies for the purposes of election to the House of Representatives, the Federal Territory of Kuala Lumpur, the Federal Territory of Labuan and the Federal Territory of Putrajaya shall each be regarded as a State.

PART II

PROCEDURE FOR DELIMITATION OF CONSTITUENCIES

4. Where the Election Commission have provisionally determined to make recommendations under Clause (2) of Article 113 affecting any constituency, they shall inform the Speaker of the House of Representatives and the Prime Minister accordingly, and shall publish in the *Gazette* and in at least one newspaper circulating in the constituency a notice stating—

- (a) the effect of their proposed recommendations, and (except in a case where they propose to recommend that no alteration be made in respect of the constituency) that a copy of their recommendations is open to inspection at a specified place within the constituency; and
- (b) that representations with respect to the proposed recommendations may be made to the Commission within one month after the publication of such notice,

and the Commission shall take into consideration any representations duly made in accordance with any such notice.

Federal Constitution

NOTES

Thirteenth Schedule—(cont.)

Section 3A

1. This section was inserted by Act A206, subsection 15(2), in force from 23-08-1973.
2. The words “the Federal Territory of Kuala Lumpur or the Federal Territory of Labuan, as the case may be, shall each be regarded as a State.” substituted for the words “the Federal Territory shall be regarded as a State” by Act A585, section 20, in force from 16-04-1984.
3. The words “, the Federal Territory of Labuan and the Federal Territory of Putrajaya” substituted for the words “or the Federal of Labuan, as the case may be,” by Act A1095, section 21, in force from 01-02-2001.

5. Where, on the publication of the notice under section 4 of a proposed recommendation of the Election Commission for the alteration of any constituencies, the Commission receive any representation objecting to the proposed recommendation from—

- (a) the State Government or any local authority whose area is wholly or partly comprised in the constituencies affected by the recommendation; or
- (b) a body of one hundred or more persons whose names are shown on the current electoral rolls of the constituencies in question,

the Commission shall cause a local enquiry to be held in respect of those constituencies.

6. In relation to any enquiry held under section 5 the Election Commission shall have all the powers conferred on Commissioners by the Commissions of Enquiry Act 1950 [*Act 119*].

7. Where the Election Commission revise any proposed recommendations after publishing a notice thereof under section 4, the Commission shall comply again with that section in relation to the revised recommendations, as if no earlier notice had been published:

Provided that it shall not be necessary to hold more than two local enquiries in respect of any such recommendations.

8. The Election Commission shall, having completed the procedure prescribed by this Part, submit to the Prime Minister a report on constituencies showing—

- (a) the constituencies into which they recommend that each unit of review should be divided in order to give effect to the principles set out in section 2; and
- (b) the names by which they recommend that those constituencies shall be known,

or stating that in their opinion no alteration is required to be made in order to give effect to the said principles.

9. As soon as may be after the Election Commission have submitted their report to the Prime Minister under section 8, he shall lay the report before the House of Representatives, together (except in a case where the report states that no alteration is required to be made) with the draft of an Order to be made under section 12 for giving effect, with or without modifications, to the recommendations contained in the report.

10. If any draft Order referred to in section 9 is approved by the House of Representatives by resolution supported by the votes of not less than one-half of the total number of members of that House, the Prime Minister shall submit the draft Order to the Yang di-Pertuan Agong.

Federal Constitution

NOTES

Thirteenth Schedule—(cont.)

Section 6

The word “Act” substituted for the word “Ordinance” by Act 1, subsection 14(2).

Section 8

See section 9.

Paragraph 8(a)

The words “each unit of review” which appear in lines one and two substituted for the words “the Federation and each State” by Act 26/1963, section 70, in force from 16-09-1963.

Section 9: See sections 10 & 11.

Sections 10 & 11: See Art. 62(3).

11. If a motion for the approval of any draft Order referred to in section 9 is rejected by the House of Representatives, or is withdrawn by leave of the House, or is not supported by the votes of not less than one-half of the total number of members of the House, the Prime Minister may, after such consultation with the Election Commission as he may consider necessary, amend the draft and lay the amended draft before the House of Representatives; and if the draft as so amended is approved by the House by a resolution supported by the votes of not less than one-half of the total number of members of the House, the Prime Minister shall submit the amended draft to the Yang di-Pertuan Agong.

12. Where the draft of an Order is submitted to the Yang di-Pertuan Agong under this Part, the Yang di-Pertuan Agong shall make an Order in the terms of the draft submitted to him, and the Order shall come into force on such date as may be specified therein:

Provided that the coming into force of any such Order shall not affect any election to the House of Representatives or a Legislative Assembly until the next dissolution of Parliament or the Assembly, as the case may be, occurring on or after that date.

Federal Constitution

NOTES

Thirteenth Schedule—(cont.)

Section 12

1. The words “to the House of Representatives or a Legislative Assembly until the next dissolution of Parliament or the Assembly, as the case may be, occurring on or after that date” substituted for the words “until a proclamation is issued by the Yang di-Pertuan Agong under Article 55 summoning a new Parliament” by Act 26/1963, section 70, in force from 16-09-1963.
2. *See* section 9.

LIST OF AMENDMENTS

LIST OF ARTICLES AMENDED

FEDERAL CONSTITUTION

LIST OF AMENDMENTS

Amending law	Short title	In force from
Ord. 42/1958	Constitution (Temporary Amendment) Ordinance 1958	05-12-1958
Act 10/1960	Constitution (Amendment) Act 1960	31-05-1960 except s.13 and para.17(<i>d</i>): 31-08-1957; s.31: 08-08-1960; s.3: 11-09-1960; s.2, 33 and 35: 01-12-1960; s.22, 24 and para. 27(<i>a</i>) and (<i>c</i>): 01-04-1961; s.26: 16-09-1963
Act 14/1962	Constitution (Amendment) Act 1962	s.8, 13, 24 and 30: 31-08-1957; s.32 (para.14 of Schedule: 01-12-1960; s.12, 14, 15, 17 to 23, 28, 29 and 34, s.32 (subsubpara.(<i>c</i>) of para.1 of Schedule and para.4 to para.11 of Schedule): 21-06-1962; s.16, 25 and 33: 15-07-1962; s.2, 3, 4, 6, 9, 10, 11, 26 and 27, s.32 (para.3 and 12 of Schedule): 01-10-1962; s.5, s.32 (subsubpara.(<i>a</i>) and (<i>b</i>) of para.1 of Schedule): 01-07-1963; s.7, s.32 (para.2 of Schedule): 01-02-1964; s.32 (para.13 of Schedule): 16-09-1963
Act 25/1963	Constitution (Amendment) Act 1963	29-08-1963 except s.2 and 5: 31-08-1957; s.7: 01-01-1958

Amending law	Short title	In force from
Act 26/1963	Malaysia Act	16-09-1963 except s.37: 31-08-1957
Act 19/1964	Constitution (Amendment) Act 1964	30-07-1964 except s.5: 16-09-1963; s.4: 01-01-1965
Act 31/1965	Constitution and Malaysia Act (Amendment) Act 1965	01-07-1965 except Part I of First Schedule and Second Schedule: 16-09-1963; Part II of First Schedule—amendment of Article 132 of the Constitution—Malacca: 01-05-1960; and Penang: 01-11-1959
Act 53/1965	Constitution and Malaysia (Singapore Amendment) Act 1965	09-08-1965
Act 59/1966	Constitution (Amendment) Act 1966	19-09-1966 except amendments of Articles 1, 3, 14, 15, 16, 16A, 18, 19, 19A, 26A, 28A, 30, 30A, 30B, 42, 46, 88, 95B, 95D, 95E, 112A, 112B, 112E, 113, 121, 122A, 122B, 146B, 146C(1), 159, 160, 161F-161H, 169, Second Schedule, Eighth Schedule (s.23) and Ninth Schedule: 09-08-1965; amendments of Article 71: 16-09-1963; amendments of Tenth Schedule: 01-01-1963